

**FORM F74
(RULE 17-1 (5))**

Court File No.: _____

Court Registry: _____

In the Supreme Court of British Columbia

Petitioner: _____

Respondent: _____

RESPONSE TO PETITION

[Rule 21-1 of the Supreme Court Family Rules applies to all forms.]
Filed by: _____ (the “petition respondent(s)”) *[party(ies)]*

THIS IS A RESPONSE TO the petition filed _____ .
[date]

The petition respondent(s) estimate(s) that the application will take _____ .
[time estimate]

Official language choice for *Divorce Act* proceedings (see Notice to Petition Respondent below):

[If the petition is seeking orders under the Divorce Act, check whichever one of the following boxes is correct.]

The petition respondent(s) intend(s) to file documents, give evidence or make submissions in this proceeding in the ☐ English language ☐ French language ☐ English language and French language (bilingual)
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Part 1: ORDERS CONSENTED TO

The petition respondent(s) consent(s) to the granting of the orders set out in the following paragraphs of Part 1 of the petition: _____
[set out paragraph numbers]

Part 2: ORDERS OPPOSED

The petition respondent(s) oppose(s) the granting of the orders set out in paragraphs _____ of Part 1 of the petition.
[list paragraph numbers]

Part 3: ORDERS ON WHICH NO POSITION IS TAKEN

The petition respondent(s) take(s) no position on the granting of the orders set out in paragraphs _____ of Part 1 of the petition.

[list paragraph numbers]

Part 4: FACTUAL BASIS

[Using numbered paragraphs, set out a brief summary of the material facts on which the orders sought in the petition should not be granted.]

1.

[if more space is required - attach page and state "See Attached"]

Part 5: LEGAL BASIS

[Using paragraphs numbered sequentially from Part 4 above, specify any rule or other enactment relied on and provide a brief summary of any other legal bases on which the petition respondent(s) intend(s) to rely in opposing the orders sought in the petition. In addition, a written argument may be provided to the court in opposition to the petition.]

2.

[if more space is required - attach page and state "See Attached"]

Part 6: MATERIAL TO BE RELIED ON

[Using numbered paragraphs, list the affidavits served with this response to petition and any other affidavits and other documents already in the court file on which the petition respondent(s) will rely. Each affidavit included on the list must be identified as follows: "Affidavit #.....[sequential number, if any, recorded in the top right hand corner of the affidavit]..... of[name]....., made[date].....".]

1.

[if more space is required - attach page and state "See Attached"]

Date: _____

Signature of ☐petition respondent
☐lawyer for petition respondent(s)

[type or print name]

Petition respondent's(s') address for service:

[Set out the street address of the address for service. One or both of a fax number and an e-mail address may be given as additional addresses for service.]

Fax number address for service (if any): _____

E-mail address for service (if any): _____

Name of the petition respondent's(s') lawyer, if any: _____

Notice to Petition Respondent: under **section 23.2 of the *Divorce Act***, you may choose to file pleadings or other documents, including this form, give evidence or make submissions in any ***Divorce Act*** proceeding in either of the two official languages of Canada (English or French).

Rule 1-1(1) of the Supreme Court Family Rules defines "*Divorce Act* proceeding" as follows:

"*Divorce Act* proceeding" means a family law case in which an order is sought under the *Divorce Act*. "

You may file a Notice of Extension - Official Languages in Form F86.2 and receive an additional 10 days to file this response to petition (Form F74) in accordance with Rule 20-7 (8) of the Supreme Court Family Rules.